

CASE SUMMARY

State v. Arvind & Anr.

Ct. Case No. 1001/2021 | CNR DLSW01-007808-2021 | Court of the Additional Sessions Judge (Electricity), South-West District, Dwarka Courts, Delhi

COURT	Court of the Additional Sessions Judge (Electricity), South-West District, Dwarka Courts, Delhi
JUDGE	Ms. Harleen Singh, Addl. Sessions Judge (Electricity)
DATE OF JUDGMENT	date of judgment (date of inspection / offence: date of inspection)
PARTIES	State (BSES Rajdhani Power Ltd.) v. (1) Arvind S/o Raj Kumar (user) and (2) Sumitra Devi (registered consumer)
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Sections 101, 106 & 65B, Indian Evidence Act, 1872; Sections 251 & 313, Cr.P.C.
RESULT	Acquitted — complaint dismissed. The complaint and the witnesses contradicted each other on presence, resistance, police involvement and even the nature of the load, and the material technician was withheld. The accused stands acquitted of the charge under Section 135 read with Section 150 of the Electricity Act, 2003.

CHARGE BEFORE THE COURT

Whether the accused dishonestly abstracted electricity at the inspected premises, so as to attract Section 135 read with Section 150 of the Electricity Act, 2003; and whether the prosecution's mutually contradictory evidence proved the abstraction and the accused's part in it.

FACTS

BSES Rajdhani alleged a direct tap (assessed at about Rs. 2.28 lakh). The prosecution's own account was riddled with contradictions: the complaint said both accused were present, but PW-1 and PW-3 said accused no. 2 was absent; the complaint alleged resistance, but PW-3 denied any resistance and PW-1 said no one stopped the seizure; the complaint said police were present, but PW-3 said no law-enforcement was involved and there was no security risk; PW-1 said the premises were locked, but PW-3 said they were entered and videographed; and the load was described as domestic in the complaint but as non-domestic (a kabadi godown) by PW-1. The material technician (Deepak) was not examined, the wire was not tested to confirm it was live, and the connection point was not shown in the videography.

On a complaint under Section 135 r/w 150, the accused pleaded not guilty; the contradictions surfaced across the prosecution witnesses. Under Section 313 Cr.P.C. the accused denied the allegations.

REASONING OF THE COURT

HEADNOTE

Where the complaint and the prosecution witnesses contradict one another on presence, resistance, police involvement, access and even the nature of the load, and the technician who alone could prove that the wire was live is withheld, the prosecution's case does not rise to proof beyond reasonable doubt and the accused must be acquitted.

The presumption arises only after the prosecution proves the foundational facts. The Court proceeded from first principles: the third proviso to Section 135(1) is a reverse-onus clause that operates only once the prosecution has proved, beyond reasonable doubt, both an unauthorised abstraction of electricity and the identity of the accused as its author or the consumer of the premises. Until that foundation is laid the ordinary burden rests on the prosecution, and where two views are reasonably possible the one favouring the accused must be preferred.

Presence and resistance were told inconsistently. The complaint had both accused present and resistance offered; PW-1 and PW-3 placed accused no. 2 elsewhere and denied any resistance — the prosecution could not keep its own story straight on who was there and what happened.

Police presence, access and the load were all contradicted. The complaint asserted police presence and a locked premises with a domestic load; the witnesses variously denied police involvement, said the premises were entered and videographed, and described the load as a non-domestic kabadi godown — contradictions going to the core of the raid.

The live wire was never proved and the technician withheld. The technician (Deepak) was not examined, the wire was not tested to confirm it carried current, and the videography did not show the connection point — so even the fact of a live illegal tap was unproved.

The cumulative doubt entitled the accused to acquittal. With mutually contradictory prosecution evidence on presence, resistance, police involvement, access and the load, coupled with a withheld technician and an untested wire, the foundational facts were not established to the standard the law requires. The statutory presumption never arose, the benefit of the doubt went to the accused, and the charge under Section 135 read with Section 150 of the Electricity Act, 2003 was not brought home.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1) — Theft of Electricity: the Foundational Facts

The Court read Section 135(1) as requiring the prosecution first to prove, beyond reasonable doubt, the foundational facts — an unauthorised or artificial abstraction of electricity *and* the identity of the accused as its author or as the consumer/user of the inspected premises. Only upon proof of those facts does the offence, or the abetment of it, arise; a bare allegation, or mere presence at or near the spot, is not enough. As the Act does not define “dishonestly,” Section 24 IPC is imported, but dishonest intention presupposes an abstraction first fixed on the accused.

Third Proviso to Section 135(1) — When the Presumption Does Not Arise

The reverse-onus presumption of dishonest use operates only after the prosecution has established the artificial means of abstraction and connected it to the accused. Where that foundation fails — the inspection is self-contradictory, the user's identity is not fixed, material witnesses are withheld, the electronic record is not duly certified under Section 65B, or the officer's authority to complain is not proved — the presumption never arises. The ordinary rule then

governs: the prosecution must prove guilt beyond reasonable doubt, and where two views are reasonably possible the one favouring the accused is adopted.

HELD

The prosecution having failed to prove the foundational facts — mutually contradictory prosecution evidence on presence, resistance, police involvement, access and the load, coupled with a withheld technician and an untested wire — the charge under Section 135 read with Section 150 of the Electricity Act, 2003 was not established beyond reasonable doubt. **The accused is accordingly acquitted, and the complaint is dismissed.**

SIGNIFICANCE

An acquittal on a cascade of internal contradictions in the prosecution's own case. Four propositions stand out:

- **Self-contradiction across witnesses defeats proof.** When PW-1 and PW-3 contradict the complaint and each other on the basic facts of the raid, no reliable version survives.
- **The nature of the load cannot be left uncertain.** Domestic vs non-domestic goes to the assessment and the offence; an unresolved contradiction is telling.
- **A live tap must be proved, not assumed.** An untested wire and an unshown connection point leave the abstraction itself in doubt.
- **Withholding the technician deprives the accused of a fair test.** The one witness able to prove the wiring must be produced and cross-examined.

CITATIONS

The decision turned wholly on the evidence; neither side pressed any case authority, and the Court decided the matter on the record before it.

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.